

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Yu	Team: Squad #16	CCRB Case #: 202003958	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Friday, 06/05/2020 8:30 PM, Friday, 06/05/2020 8:45 PM	Location of Incident: § 87(2)(b) 75th Precinct stationhouse	18 Mo. SOL 5/4/2022	Precinct: 75		
Date/Time CV Reported Sat, 06/06/2020 6:29 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 06/06/2020 6:29 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brandon Gentz	09505	961785	075 PCT
2. POM Nowaiz Rasool	05482	961150	075 PCT
3. POM Tyler Angelo	21443	959456	075 PCT
4. Officers			
5. POM Alec Solomito	03561	964782	075 PCT
6. An officer			
7. POM Vincent Peluso	06954	966264	075 PCT
8. SGT James Mcsherry	03934	942175	075 PCT
9. PO Oscar Mancilla	00456	959782	075 PCT
10. PO John Plumitallo	16755	961108	PSA 5
11. PO Matthew Salzman	18666	959190	075 PCT
12. PO Jeanette Rodriguez	03555	961193	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Amello	17857	949999	075 PCT
2. POM Sean Keegan	12338	954994	075 PCT
3. POM Phillip Bilmes	20096	958309	075 DET
4. POM Anthony Waite	09649	961434	067 DET
5. POM Joseph Howard	17787	960683	075 PCT
6. POM Christian Salazar	22478	951195	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Nowaiz Rasool	Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Nowaiz Rasool spoke discourteously to individuals.	A . Miscellaneous - Subject Retired
B . POM Alec Solomito	Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Alec Solomito spoke discourteously to individuals.	B . Unsubstantiated
C . Officers	Discourtesy: At § 87(2)(b) in Brooklyn, officers spoke discourteously to individuals.	C . Officer(s) Unidentified
D . Officers	Discourtesy: At § 87(2)(b) in Brooklyn, officers spoke discourteously to § 87(2)(b)	D . Officer(s) Unidentified
E . PO John Plumitallo	Force: At § 87(2)(b) in Brooklyn, Police Officer John Plumitallo used physical force against § 87(2)(b)	E . Substantiated
F . PO Oscar Mancilla	Force: At § 87(2)(b) in Brooklyn, Police Officer Oscar Mancilla used physical force against § 87(2)(b)	F . Exonerated
G . POM Nowaiz Rasool	Force: At § 87(2)(b) in Brooklyn, Police Officer Nowaiz Rasool struck § 87(2)(b) with a baton.	G . Miscellaneous - Subject Retired
H . POM Brandon Gentz	Force: At § 87(2)(b) in Brooklyn, Police Officer Brandon Gentz struck § 87(2)(b) with a baton.	H . Substantiated
I . POM Brandon Gentz	Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Brandon Gentz spoke discourteously to § 87(2)(b)	I . Substantiated
J . POM Tyler Angelo	Force: At § 87(2)(b) in Brooklyn, Police Officer Tyler Angelo struck § 87(2)(b) with a baton.	J . Exonerated
K . PO Matthew Salzman	Force: At § 87(2)(b) in Brooklyn, Police Officer Matthew Salzman used physical force against § 87(2)(b)	K . Exonerated
L . POM Tyler Angelo	Force: At § 87(2)(b) in Brooklyn, Police Officer Tyler Angelo used physical force against § 87(2)(b)	L . Exonerated
M . POM Tyler Angelo	Force: Police Officer Tyler Angelo struck § 87(2)(b) with a baton.	M . Unsubstantiated
N . POM Tyler Angelo	Force: At § 87(2)(b) in Brooklyn, Police Officer Tyler Angelo used physical force against § 87(2)(b)	N . Unsubstantiated
O . POM Nowaiz Rasool	Force: At § 87(2)(b) in Brooklyn, Police Officer Nowaiz Rasool struck § 87(2)(b) with a baton.	O . Miscellaneous - Subject Retired
P . POM Nowaiz Rasool	Force: At § 87(2)(b) in Brooklyn, Police Officer Nowaiz Rasool used physical force against § 87(2)(b)	P . Miscellaneous - Subject Retired
Q . POM Alec Solomito	Force: At § 87(2)(b) in Brooklyn, Police Officer Alec Solomito struck § 87(2)(b) with a nightstick/asp/baton.	Q . Unsubstantiated
R . POM Alec Solomito	Force: At § 87(2)(b) in Brooklyn, Police Officer Alec Solomito used physical force against § 87(2)(b)	R . Unsubstantiated
S . PO Matthew Salzman	Force: At § 87(2)(b) in Brooklyn, Police Officer Matthew Salzman used physical force against § 87(2)(b)	S . Unsubstantiated
T . POM Vincent Peluso	Force: At § 87(2)(b) in Brooklyn, Police Officer Vincent Peluso used physical force against § 87(2)(b)	T . Unsubstantiated
U . Officers	Force: At § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)	U . Officer(s) Unidentified
V . Officers	Force: At § 87(2)(b) in Brooklyn, officers struck § 87(2)(b) with a baton.	V . Officer(s) Unidentified
W . POM Vincent Peluso	Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Vincent Peluso spoke discourteously to § 87(2)(b)	W . Exonerated

Officer(s)	Allegation	Investigator Recommendation
X . An officer	Off. Language: At § 87(2)(b) in Brooklyn, an officer made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	X . Officer(s) Unidentified
Y . An officer	Discourtesy: At § 87(2)(b) in Brooklyn, an officer spoke discourteously to § 87(2)(b)	Y . Officer(s) Unidentified
Z . An officer	Abuse: At § 87(2)(b) in Brooklyn, an officer threatened § 87(2)(b) with the use of force.	Z . Officer(s) Unidentified
AA. PO Jeanette Rodriguez	Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Jeanette Rodriguez spoke discourteously to § 87(2)(b)	AA. Substantiated
AB. An officer	Discourtesy: At § 87(2)(b) in Brooklyn, an officer spoke discourteously to individuals.	AB. Officer(s) Unidentified
AC. PO Matthew Salzman	Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Matthew Salzman spoke discourteously to an individual.	AC. Substantiated
AD. PO Matthew Salzman	Off. Language: At § 87(2)(b) in Brooklyn, Police Officer Matthew Salzman made remarks to an individual based upon the gender of the individual.	AD. Substantiated
AE. POM Nowaiz Rasool	Force: At the 75th Precinct stationhouse, Police Officer Nowaiz Rasool used physical force against § 87(2)(b)	AE. Miscellaneous - Subject Retired
AF. POM Brandon Gentz	Discourtesy: At the 75th Precinct stationhouse, Police Officer Brandon Gentz spoke discourteously to § 87(2)(b)	AF. Substantiated
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On June 6, 2020, § 87(2)(b) filed this complaint online via the CCRB's website.

On June 5, 2020, at approximately 8:00 p.m., officers from the 75th Precinct began dispersing a crowd in the vicinity of the complexes located at § 87(2)(b) in Brooklyn. In the vicinity of § 87(2)(b) PO Nowaiz Rasool, PO Alec Solomito, and other unidentified officers from the 75th Precinct allegedly used profanities while telling the crowd to disperse (**Allegation A: Discourtesy, Subject Retired; Allegation B: Discourtesy, Unsubstantiated; Allegation C: Discourtesy, Officers Unidentified**). Officers then allegedly told § 87(2)(b) "Get the fuck in the house" (**Allegation D: Discourtesy, Officers Unidentified**). PO John Plumitallo pushed § 87(2)(b) and PO Oscar Mancilla took § 87(2)(b) to the ground (**Allegation E: Force, Substantiated; Allegation F: Force, Exonerated**). PO Rasool then struck § 87(2)(b) with his baton (**Allegation G: Force, Subject Retired**).

While the crowd was in the middle of a courtyard, officers ran towards the crowd and § 87(2)(b) and § 87(2)(b) ran away. PO Brandon Gentz then struck § 87(2)(b) with his baton and said, "Come on mother fucker" before handcuffing him (**Allegation H: Force, Substantiated; Allegation I: Discourtesy, Substantiated**).

PO Rasool, PO Tyler Angelo, PO Matthew Salzman, PO Vincent Peluso, and PO Solomito then chased after § 87(2)(b). PO Angelo struck § 87(2)(b) with his baton and then he and PO Salzman pulled him down (**Allegation J: Force, Exonerated; Allegation K: Force, Exonerated; Allegation L: Force, Exonerated**). PO Angelo then struck § 87(2)(b) with his baton again, punched, and kicked § 87(2)(b) (**Allegation M: Force, Unsubstantiated; Allegation N: Force, Unsubstantiated**). PO Rasool subsequently struck § 87(2)(b) with his baton (**Allegation O: Force, Subject Retired**). PO Rasool allegedly punched § 87(2)(b) (**Allegation P: Force, Subject Retired**). PO Solomito allegedly struck § 87(2)(b) with his baton and punched him (**Allegation W: Force, Unsubstantiated; Allegation R: Force, Unsubstantiated**). As the officers attempted to handcuff § 87(2)(b) PO Salzman and PO Peluso punched § 87(2)(b) (**Allegation S: Force, Unsubstantiated; Allegation T: Force, Unsubstantiated**). After officers handcuffed § 87(2)(b) unidentified officers allegedly punched, kicked, and struck § 87(2)(b) with their batons (**Allegation U and V: Force, Officers Unidentified**). PO Peluso used profanities while speaking to § 87(2)(b) (**Allegation W: Discourtesy, Exonerated**). As the officers were handcuffing § 87(2)(b) an officer called § 87(2)(b) a "bitch" and said, "If you don't give me your hands I'mma sock you in the fucking face man. Give me your fucking hands" (**Allegation X: Offensive Language, Officer Unidentified; Allegation Y: Discourtesy, Officer Unidentified; Allegation Z: Abuse of Authority, Officer Unidentified**). After officers handcuffed § 87(2)(b) officers escorted § 87(2)(b) and § 87(2)(b) to a police van. PO Jeanette Rodriguez used profanities while speaking to § 87(2)(b) (**Allegation AA: Discourtesy, Substantiated**).

After officers escorted § 87(2)(b) and § 87(2)(b) to a police vehicle, an unidentified officer told a civilian, "Just go into the fucking precinct" (**Allegation AB: Discourtesy, Officer Unidentified**). PO Salzman then told a civilian, "What the fuck are you going to do? You fucking bitch" (**Allegation AC: Discourtesy, Substantiated; Allegation AD: Offensive Language, Substantiated**). Officers subsequently transported § 87(2)(b) and § 87(2)(b) to the 75th Precinct stationhouse.

Outside the 75th Precinct stationhouse, PO Rasool pulled § 87(2)(b) out of the police vehicle (**Allegation AE: Force, Subject Retired**). Inside the stationhouse, PO Gentz spoke discourteously to § 87(2)(b) (**Allegation AF: Discourtesy, Substantiated**).

§ 87(2)(g), § 87(4-b)

The investigation is in possession of officers' BWC videos and cell phone footage (Board Review 13 and 38).

Findings and Recommendations

Allegation (A) Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Nowaiz Rasool spoke discourteously to individuals.

Allegation (B) Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Alec Solomito spoke discourteously to individuals.

Allegation (C) Discourtesy: At § 87(2)(b) in Brooklyn, officers spoke discourteously to individuals.

Allegation (D) Discourtesy: At § 87(2)(b) in Brooklyn, officers spoke discourteously to § 87(2)(b).

In his CCRB statement, § 87(2)(b) stated that at approximately 6:00 p.m., he and approximately 30-40 people attended a post-funeral celebration in the vicinity of § 87(2)(b) in Brooklyn (Board Review 02). § 87(2)(b) stated that prior to 8:00 p.m., neither officers nor security guards spoke to § 87(2)(b) or the group. At approximately 8:00 p.m., approximately 30 officers arrived at the location. § 87(2)(b) and approximately 15 to 20 people began walking towards § 87(2)(b) (on the other side of a bridge). § 87(2)(b) stated that PO Rasool, PO Solomito, and other officers told the group, "Get the fuck in the house," "Shut up," and "You ain't doing shit." § 87(2)(b) did not recall any other statements the officers made. In response, § 87(2)(b) and the civilians told the officers, "Suck my dick," "You's a bitch," "You ain't shit without your vest," and "Take your vest off." § 87(2)(b) stated that officers also possibly told § 87(2)(b) "Get the fuck in the house."

In his CCRB statement, § 87(2)(b) stated that he was meeting a friend in the vicinity of § 87(2)(b) at approximately 8:30 p.m. when officers began telling people to move (Board Review 01). § 87(2)(b) and his friends then reached the courtyard between two buildings. § 87(2)(b) stated that the officers reminded the civilians of the curfew, but did not recall the officers saying anything else. During his CCRB interview, § 87(2)(b) did not say whether the officers used profanities.

Despite attempts to contact § 87(2)(b) the investigation as unable to reach him to obtain a statement.

The investigation was unable to obtain statements from § 87(2)(b) friends because they were either uncooperative or the investigation did not have their contact information.

All the officers provided a generally consistent account that they responded to the building complex in the vicinity of § 87(2)(b) and § 87(2)(b) to address a large disorderly crowd. The officers stated that the crowd was blocking traffic, smoking marijuana, and drinking. PO Angelo, PO Gentz, and Sgt. McSherry stated that they were aware that people had gathered for a funeral for either a rapper or gang member (Board Review 03, 04, and 07). PO Angelo and PO Peluso stated that there was a curfew in place on June 5, 2020, but neither recalled the restrictions (Board Review 03 and 05). In their CCRB statements, PO Solomito, PO Angelo, PO Gentz, PO Peluso, PO Salzman, PO Mancilla, and Sgt. McSherry stated that they instructed the crowd to disperse, but they

either did not recall or denied using profanities when dispersing the crowd (03-05, and 07-11). PO Plumattillo did not recall if he gave commands to the crowd to disperse and did not recall what commands the other officers gave (Board Review 06).

None of the officers' BWC captured the entirety of when the officers dispersed the crowd (Board Review 13).

According to a NYPD Finest Memo sent to all commands, a curfew was in place between June 3, 2020, to June 7, 2020, between the hours of 8:00 p.m. and 5:00 a.m. (Board Review 29). A C-summons may be issued for Administrative Code 3-108 (violating a mayoral emergency order) to a person violating the curfew.

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **miscellaneous-subject retired**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Unsubstantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation C and D** be closed as **Officers Unidentified**.

Allegation (E) Force: At § 87(2)(b) in Brooklyn, Police Officer John Plumattillo used physical force against § 87(2)(b)

Allegation (F) Force: At § 87(2)(b) in Brooklyn, Police Officer Oscar Mancilla used physical force against § 87(2)(b)

Allegation (G) Force: At § 87(2)(b) in Brooklyn, Police Officer Nowaiz Rasool struck § 87(2)(b) with a baton.

It is undisputed that § 87(2)(b) and the crowd of civilians were violating the curfew at the time of incident.

In his CCRB statement, § 87(2)(b) stated that upon arriving at a bridge, civilians moved barricades that were blocking their path from crossing over (Board Review 02). Once the civilians walked past the barricades, they moved it back to its original position. As § 87(2)(b) placed the barricade back, PO Rasool, PO Solomito, and another officer pushed the barricade with their arms and legs. § 87(2)(b) stated that the barricade fell on § 87(2)(b). In response, § 87(2)(b) lifted the barricade up and stood it upright. § 87(2)(b) did not see the barricade make any physical contact with the officers. Approximately three officers subsequently took § 87(2)(b) to the ground. § 87(2)(b) did not see where the officers grabbed § 87(2)(b) but he saw the officers pull and shove § 87(2)(b) to the ground. § 87(2)(b) stood approximately six feet away. § 87(2)(b) denied making physical contact with § 87(2)(b) or the officers and denied interfering. The officers subsequently "beat up" § 87(2)(b) but § 87(2)(b) could not see what the officers were doing because the officers obstructed his view.

According to § 87(2)(b) statement, § 87(2)(b) was not present during § 87(2)(b) arrest (Board Review 01). § 87(2)(b) joined the group after they had crossed the bridge.

Despite attempts to contact § 87(2)(b) the investigation as unable to reach him to obtain a

statement.

In his CCRB statement, PO Plumitallo stated that an officer pushed a barrier down, but he did not believe the barrier fell on anyone (Board Review 06). PO Plumitallo stated that § 87(2)(b) subsequently lifted the barrier up and it appeared that § 87(2)(b) was going to push or throw the barrier. PO Plumitallo believed § 87(2)(b) was going to use the barrier as a weapon because he “lunged” towards the officers with it. PO Plumitallo pushed § 87(2)(b) by his torso in defense of the other officers. PO Plumitallo did not recall if § 87(2)(b) fell or stumbled. The other officers then handcuffed § 87(2)(b). PO Plumitallo did not know which officers handcuffed § 87(2)(b) or how they handcuffed him because PO Plumitallo continued walking to perform crowd control. In his CCRB statement, PO Mancilla stated that § 87(2)(b) pushed a barrier onto an officer who was trying to move the barrier away (Board Review 09-10). PO Mancilla did not recall the barrier making any physical contact with civilians when the officer moved it. PO Mancilla and other officers subsequently went to arrest § 87(2)(b). PO Mancilla did not recall which officers participated in arresting § 87(2)(b). PO Mancilla did not know what the other officers were doing as they handcuffed § 87(2)(b). At one point, § 87(2)(b) head was next to PO Mancilla and PO Mancilla tried to take § 87(2)(b) down to the ground by pushing his head down. PO Mancilla and § 87(2)(b) fell due to § 87(2)(b) weight and PO Mancilla being against a wall. PO Mancilla’s right bicep and armpit was against the back of § 87(2)(b) head and neck area. No other part of PO Mancilla’s body was making physical contact with § 87(2)(b). PO Mancilla’s forearm and hand were by the side of PO Mancilla’s body. § 87(2)(b) refused to be handcuffed by tensing his arms. PO Mancilla did not recall what else § 87(2)(b) was doing. Once § 87(2)(b) was on the ground, PO Mancilla’s lower body was on the ground in a seated position. PO Mancilla continued to hold § 87(2)(b) with his bicep and armpit against the back of § 87(2)(b) head and neck area. § 87(2)(b) was laying on PO Mancilla at this point. PO Mancilla’s right forearm was on the top part of § 87(2)(b) head. PO Mancilla released his hold of § 87(2)(b) head area after less than 10 seconds. Other officers subsequently handcuffed § 87(2)(b). Once the officers handcuffed § 87(2)(b) they stood § 87(2)(b) up.

In his CCRB statement, PO Salzman stated that he saw § 87(2)(b) aggressively shove the barrier against an officer (Board Review 11). He did not recall whether he witnessed the barricade hitting any officers. It was difficult for him to see what happened after because there were approximately 15 officers in front of him. PO Salzman knew officers arrested § 87(2)(b) but did not see the way the officers handcuffed him.

In his CCRB statement, Sgt. McSherry stated that § 87(2)(b) held a barricade in front of the officers and prevented them from moving forward (Board Review 07). Sgt. McSherry stated that officers subsequently grabbed § 87(2)(b) torso and handcuffed him. Sgt. McSherry did not believe § 87(2)(b) or officers were ever on the ground. Sgt. McSherry did not see officers use force against § 87(2)(b) or § 87(2)(b) resist.

In his CCRB testimony, PO Gentz stated that either one person or multiple people threw metal barricades towards the officers (Board Review 04). PO Gentz did not see whether the metal barriers hit any officers. PO Gentz did not see what happened with the civilian(s) that threw the metal barricades because he continued to follow the group of civilians.

§ 87(2)(b) was arrested and charged with resisting arrest, inciting to riot, obstructing governmental administration, unlawful assembly, and disorderly conduct (Board Review 15). § 87(2)(b) arrest report documented that PO Rasool struck § 87(2)(b) with an impact weapon to overcome resistance/aggression.

At the beginning of PO Bilmes' BWC, it appears that § 87(2)(b) is talking to the officers, but it is unclear what is said since audio is not captured until 1:00 (Board Review 18). At 00:45, a male wearing a yellow t-shirt (identified via the investigation as § 87(2)(b)) appears to move a barricade to the right. At 00:50, it appears that officers push the barricades forward. At 00:51, § 87(2)(b) catches the barricades before it falls and then pushes it towards the direction of the officers, let goes of the barricade, and then walks away. At 00:53, PO Plumitallo pushes § 87(2)(b) by his chest. It is unclear what immediately happens because PO Bilmes is behind the other officers. At 00:55, PO Plumitallo backs away from § 87(2)(b). At 01:01, it appears that officers are holding § 87(2)(b) by a wall. It is unclear where the officers are making physical with § 87(2)(b) body. At 01:03, PO Mancilla places his left arm around § 87(2)(b) neck from the back and pushes him down to the ground. Officers handcuffed § 87(2)(b) and stood him up at 1:25.

At 00:47 of PO Waite's BWC, PO Plumitallo walks behind § 87(2)(b) as he walks past the barricades (Board Review 19). At 00:52, § 87(2)(b) and PO Plumitallo is out of the camera's frame. At 00:53, § 87(2)(b) stumbles and falls on the right side of the screen. PO Waite's BWC falls as he approaches § 87(2)(b). At 00:56, § 87(2)(b) helps § 87(2)(b) up and § 87(2)(b) attempts to move away from the officers.

The TRI report noted that several officers used force against § 87(2)(b) and § 87(2)(b) (Board Review 17). However, the TRI did not document which officers used each specific force. Moreover, the TRI report only noted that officers forcibly took § 87(2)(b) down after he pushed a metal barricade towards the officers.

NYPD Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of the service or otherwise protect life, or when it is reasonable to place person in custody or prevent escape from custody (Board Review 32).

It is undisputed that after officers pushed the barricade forward, § 87(2)(b) caught it and pushed it towards the officers preventing the officers from moving forward. However, BWC footage showed that § 87(2)(b) did not lift the barricade in the manner as described by PO Plumitallo and it did not appear as if § 87(2)(b) was going to throw the barricade at officers. After § 87(2)(b) pushed the barricade up, he let go of it, and took a few steps back before PO Plumitallo pushed § 87(2)(b).
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **Substantiated**.

From PO Waite's BWC, it is undisputed that § 87(2)(b) attempted to get away from the officers after PO Plumitallo pushed him. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as **Exonerated**

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation G** be closed as **Subject Retired**.

Allegation (H) Force: At § 87(2)(b) in Brooklyn, Police Officer Brandon Gentz struck § 87(2)(b) with a baton.

Allegation (I) Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Brandon Gentz spoke discourteously to § 87(2)(b)

In his CCRB statement, § 87(2)(b) stated that while the civilian and officers were in the courtyard, the officers charged at the crowd without saying anything (Board Review 01). § 87(2)(b) ran, but he slipped and fell on the grass. § 87(2)(b) stated that once he stood up, PO Gentz approached him and told him to stop. § 87(2)(b) said “okay”, put his hands up, and said, “I’m not resisting arrest.” § 87(2)(b) stated that PO Gentz then asked § 87(2)(b) “Do you want to go?” In response, § 87(2)(b) said, “What? No. I’m not resisting arrest. There’s no need to hit me.” § 87(2)(b) was not doing anything at this point. PO Gentz subsequently struck the area behind § 87(2)(b) right knee with his baton. § 87(2)(b) fell on one knee. PO Gentz then pushed § 87(2)(b) down, placed his knee on § 87(2)(b) back and placed § 87(2)(b) hands behind his back. § 87(2)(b) was not moving his body and did not try to get up. § 87(2)(b) denied moving while on the ground. Another officer then came and gave PO Gentz handcuffs. PO Gentz then handcuffed § 87(2)(b) told PO Gentz that his leg hurt and limped as PO Gentz walked him towards a group of officers and other arrested individuals. During his CCRB interview, § 87(2)(b) described himself as 5’6” tall and weighing 110 pounds (Board Review 22). § 87(2)(b) was 17 years old at the time of incident.

In his CCRB statement, § 87(2)(b) stated that he did not recall § 87(2)(b) and did not see him fighting with officers.

In his CCRB testimony, PO Gentz stated that as he and the officers were trying to disperse the crowd, § 87(2)(b) threw an unidentified object towards the officers (Board Review 04). PO Gentz did not know if the object hit an officer. PO Gentz stated that once § 87(2)(b) threw the object, PO Gentz and the officers were going to place people under arrest for obstructing governmental administration and disorderly conduct since they refused orders to leave. PO Gentz heard § 87(2)(b) yelling and screaming but did not know what he said. PO Gentz subsequently chased § 87(2)(b) because he ran away from the “pack.” PO Gentz explained from prior experience, when someone runs off from the group, they are trying to hide something or get away. PO Gentz told § 87(2)(b) to get down. PO Gentz then saw § 87(2)(b) slip and fall. § 87(2)(b) then “shot” up. PO Gentz stated that § 87(2)(b) did not try to run away; instead, § 87(2)(b) abruptly turned to him. PO Gentz did not observe what, if anything, was in § 87(2)(b) hands. PO Gentz stated that he was concerned for his safety and everyone else’s safety because of the possibility that § 87(2)(b) had “something.” PO Gentz subsequently struck § 87(2)(b) once in the right lower leg with the baton. There was no additional reason why he struck § 87(2)(b). PO Gentz stated that people in the crowd were attending a “rockstar” gang member’s funeral and so it would be “foolish” to not think that they would be carrying “protection” (weapons and firearms). PO Gentz never saw § 87(2)(b) prior to this incident, and he was not aware whether § 87(2)(b) was in a gang. However, PO Gentz stated that § 87(2)(b) had a red flag in his right back pocket which was an indicator of gang affiliation. PO Gentz did not know which specific gang § 87(2)(b) would have been affiliated with. There was nothing else that made PO Gentz believe that § 87(2)(b) was in a gang. PO Gentz did not see any bulges on § 87(2)(b). After PO Gentz struck § 87(2)(b) with a baton, § 87(2)(b) fell. § 87(2)(b) left hip was facing the ground, right arm was up, and left hand was down to his waistband. While on the ground, § 87(2)(b) left hand reached towards his left waistband, which caused PO Gentz’s to be alarmed. PO Gentz did not say anything to § 87(2)(b) at this point. PO Gentz struck § 87(2)(b) with a baton again against § 87(2)(b) lower left leg. PO Gentz was concerned that § 87(2)(b) was going to take out a weapon, so he used his baton because it was available in his hand. PO Gentz then told

§ 87(2)(b) to lay on his stomach and put his hands behind his back. § 87(2)(b) complied. PO Gentz then handcuffed § 87(2)(b). PO Gentz did not know why § 87(2)(b) moved his hand towards his waistband. PO Gentz did not frisk or search § 87(2)(b) immediately after handcuffing him. PO Gentz escorted § 87(2)(b) under some scaffolding because objects were being thrown and then searched him. PO Gentz searched § 87(2)(b) again at the stationhouse and did not recover any weapons from the search. According to PO Gentz's pedigree sheet, he is 6'2" tall and weighs 220 pounds (Board Review 21).

None of the officers interviewed witnessed the interaction between PO Gentz and § 87(2)(b).

At 01:26, of PO Gentz's BWC, § 87(2)(b) runs to the left of the screen onto the grass and then falls (Board Review 20). At 1:27, § 87(2)(b) turns around and attempts to stand up. At 1:28, § 87(2)(b) says, "I didn't do anything." § 87(2)(b) hands were in front of him at this point. At 1:28, PO Gentz strikes § 87(2)(b) with his baton and § 87(2)(b) holds his right leg and limps before falling on the ground. At 1:30, PO Gentz says, "Come on motherfucker. Get down." At 1:31, § 87(2)(b) gets down to the ground with his right hand up towards PO Gentz and his left on the ground. PO Gentz tells § 87(2)(b) to get down and § 87(2)(b) left side of the body is on the ground in a fetal position. At 1:31, § 87(2)(b) hands are raised up to his head with the palms facing PO Gentz. PO Gentz subsequently swings his baton in his left hand from left to right at § 87(2)(b) legs. PO Gentz then tells § 87(2)(b) to put his hands behind his back and roll over. § 87(2)(b) complies with PO Gentz's instructions. At 2:06, PO Gentz handcuffs § 87(2)(b) and stands him up.

During his CCRB interview, PO Gentz reviewed his BWC. PO Gentz affirmed he said, "Come on motherfucker," because of the adrenaline and the presence of a group of people yelling and throwing stuff. PO Gentz stated that he wanted to show that he was serious, and he did not know if § 87(2)(b) had a weapon.

NYPD Patrol Guide Procedure 221-02 defines de-escalation as "taking action to stabilize the situation and reduce the immediacy of the threat so that more time, options, and/or resources become available (Board Review 32). The goal is to gain voluntary compliance of the subject, when appropriate and consistent with personal safety, to reduce or eliminate the necessity to use force. However, force may be used when it is reasonable to ensure the safety of a member of the service or otherwise protect life, or when it is reasonable to place person in custody or prevent escape from custody. In determining whether the use of force is reasonable, member of the service should consider the nature and severity of the crime/circumstances, actions taken by the subject, duration of action, immediacy of perceived threat or harm to subject, members of service, and/or bystanders, whether the suspect is actively resisting custody, whether the subject is attempting to evade arrest by flight, size, age, and condition of the subject in comparison to the MOS (Board Review 32).

The mission and values of the NYPD states that officers are to "maintain a higher standard of integrity that is generally expected of others" and "value human life, respect the dignity of each individual, and render our services with courtesy and civility," NYPD Patrol Guide Procedure 200-02 (Board Review 31).

Officers' use of profanities during stressful street encounters do not constitute misconduct, but may not do so when it serves "no legitimate purpose but to belittle" a civilian, DAO DCT Case Number 2015-15012 (Board Review 30).

It is undisputed that § 87(2)(b) was with a crowd of individuals who were violating the curfew and refused to disperse. PO Gentz had not witnessed § 87(2)(b) committing any other crimes. Although there was a large group at the location, the BWC showed that once the officers ran into the crowd,

everyone ran and there were no other civilians in the immediate vicinity of PO Gentz and § 87(2)(b)

It is undisputed that PO Gentz is twice the size and half a foot taller than § 87(2)(b) who was also 17 years old at the time. § 87(2)(g)

footage disputes PO Gentz's account that § 87(2)(b) was reaching for his waistband as he fell after PO Gentz struck him. Furthermore, § 87(2)(b) was already on the ground and did not appear to be resisting when PO Gentz struck him with the baton again. § 87(2)(g)

It is undisputed that PO Gentz and the officers were dispersing a large crowd that was refusing to leave. Moreover, immediately prior to PO Gentz catching up to § 87(2)(b) had thrown an unknown object at officers and all of the officers ran towards the crowd. § 87(2)(g)

Allegation (J) Force: At § 87(2)(b) in Brooklyn, Police Officer Tyler Angelo struck § 87(2)(b) with a baton.

It is undisputed that § 87(2)(b) threw an object at officers. At 1:17 of PO Amello's BWC, § 87(2)(b) (wearing a yellow shirt) throws an object towards the officers and then walks away (Board Review 23). None of the officers knew what the object was at the time of incident, and did not recall if they found out what it was afterwards. BWC footage does not show the object and none of the police documents mention what the object was. PO Angelo, PO Salzman, PO Solomito, PO Amello, and PO Peluso, subsequently chase after § 87(2)(b).

In his CCRB statement, § 87(2)(b) denied saying anything to the officers, making verbal threats, and denied throwing anything at the officers (Board Review 02). § 87(2)(b) stated that he ran once the officers charged towards the civilians. § 87(2)(b) stated that he eventually slowed down and then officers took him down. § 87(2)(b) stated that he was not doing anything at this point and his arms were by his side. Once § 87(2)(b) was faced down on the ground, § 87(2)(b) tried to place his hands behind his back, but he could not because PO Rasool, PO Solomito, and other officers repeatedly struck him with a "black metal bat" and punched him. Unidentified officers subsequently struck § 87(2)(b) in the head approximately 20 times in succession. In response to being hit in the head, § 87(2)(b) tried to bring his hands up to his face to guard his face while screaming, "I'm helping you." § 87(2)(b) denied refusing to give his hands to the officers. The officers then punched § 87(2)(b) in the mouth approximately five times. The officers hit § 87(2)(b) with the "bat" all over his body approximately 20 times. Eventually, the officers handcuffed § 87(2)(b). While § 87(2)(b) was in handcuffs, the officers continued to hit him in the same way he described prior to being handcuffed. § 87(2)(b) stated that he fell unconscious at some point on the ground and regained consciousness when he stood up. § 87(2)(b) denied causing physical damage or kicking any officers. Aside from what he already mentioned, § 87(2)(b) denied moving any other way while he was on the ground.

In his CCRB testimony, PO Angelo stated that he and other officers chased § 87(2)(b) to arrest him because he had assaulted an officer and was fleeing arrest (Board Review 03). PO Angelo stated that § 87(2)(b) ran under the scaffoldings and then into a pole. § 87(2)(b) continued running. PO Angelo subsequently struck § 87(2)(b) in the shoulder with the baton to overcome his resistance and slow him down to apprehend him. PO Angelo stated that he used his baton because it was already in his hand and was considered the same level (of force) as the other tools on his belt. PO Angelo did not recall how many times he struck § 87(2)(b) with the baton. PO Angelo then pulled § 87(2)(b) down by his shirt as he continued to resist. § 87(2)(b) flailed his arms, kicked, tried to punch, tried to get up, tensed up his arms, and laid on his hands. While on the ground, § 87(2)(b) was on his stomach. Other officers assisted at this point. PO Angelo denied striking § 87(2)(b) with his baton again. PO Angelo tried to control § 87(2)(b) extremities with his left hand while holding his baton in his right hand. At some point, PO Angelo punched and kicked § 87(2)(b) to control § 87(2)(b) because he was flailing a lot. PO Angelo stated that he did not recall where the punches and kicks landed. PO Angelo stated that § 87(2)(b) tried to kick the officers off him and swung his arms at the officers to get away. At one point, § 87(2)(b) tensed up and laid on his hands while still swinging his legs. PO Angelo stated that he did not recall how many times he punched § 87(2)(b). PO Angelo stated that he used "minor" kicks against § 87(2)(b) leg to stop him from kicking. PO Angelo's kicks were successful in controlling § 87(2)(b) but he was still resisting. Other officers then handcuffed § 87(2)(b). PO Angelo did not recall if officers struck § 87(2)(b) with their batons. PO Angelo did not recall what the other officers did or whether they punched or kicked § 87(2)(b). PO Angelo denied using additional force against § 87(2)(b).

In his CCRB testimony, PO Peluso stated that § 87(2)(b) ran into a pole but continued running

(Board Review 05). As § 87(2)(b) ran, he hit another pole with the side of his body. § 87(2)(b) then fell, but PO Peluso was not sure what caused § 87(2)(b) to fall. Officers then tried to handcuff § 87(2)(b). PO Peluso stated that PO Angelo struck § 87(2)(b) in the arm with his baton while § 87(2)(b) was bracing his arms and not giving them up. § 87(2)(b) clasped his hands together in front of his body. § 87(2)(b) was either on the ground or in the process of falling when PO Angelo struck him with the baton. PO Peluso stated that he did not recall how many times PO Angelo struck § 87(2)(b) with the baton. PO Peluso stated that he did not recall PO Angelo striking § 87(2)(b) anywhere else on his body with the baton. PO Peluso did not recall if any other officers struck § 87(2)(b) with a baton. PO Peluso went down on one knee and tried to grab § 87(2)(b) arm to bring it behind his back. § 87(2)(b) hands were in front of him in a closed fist. § 87(2)(b) then pulled his arm away. PO Peluso subsequently punched § 87(2)(b) body (shoulder, upper back area, and arms) to gain compliance because he was pulling away. After a few seconds, officers handcuffed § 87(2)(b). PO Peluso did not recall § 87(2)(b) striking any officers. PO Peluso stated that he did not recall § 87(2)(b) spitting or biting. PO Peluso denied using foot strikes against § 87(2)(b). PO Peluso stated that he did not recall seeing other officers striking § 87(2)(b). PO Peluso stated that he did not recall where PO Rasool made physical contact with § 87(2)(b). PO Peluso did not recall if § 87(2)(b) moved his legs during the arrest. PO Peluso did not use additional force against § 87(2)(b) and did not recall other officers doing so.

In his CCRB testimony, PO Salzman stated that § 87(2)(b) hit a pole with the left side of his body as he ran under the scaffolding (Board Review 11). § 87(2)(b) was knocked off balance, stumbled, but tried to regain his balance to continue fleeing. PO Salzman participated in a forcible takedown to ensure § 87(2)(b) would stop running and to control his hands. PO Salzman stated that § 87(2)(b) was in a tumbling motion forward as if he was going down when he grabbed § 87(2)(b) possibly by his shirt. PO Salzman did not see an officer strike § 87(2)(b) with a baton at any point prior to him going to the ground. PO Salzman denied striking § 87(2)(b) with a baton at any point. On the ground, § 87(2)(b) laid on top of his hands and tensed his body. PO Salzman was along the upper to middle part of the left side of § 87(2)(b) body and tried to get his left hand out. § 87(2)(b) kicked PO Salzman and other officers. In response, PO Salzman used approximately one or two punches to gain compliance and to stop § 87(2)(b) from kicking. PO Salzman was unsure where the punches landed. Once PO Salzman was able to get one of § 87(2)(b) hands free from underneath him, he controlled his other hand and handcuffed him. PO Salzman denied using any additional force against § 87(2)(b). PO Salzman stated that he did not see officers punching or kicking § 87(2)(b). PO Salzman did not see any officers striking § 87(2)(b) with a baton at any point.

In his CCRB testimony, PO Solomito stated that he temporarily lost sight of § 87(2)(b) as he ran because people threw objects at the officers from their apartment windows (Board Review 08). PO Solomito stated that § 87(2)(b) was on the ground, but he did not know how he ended up on the ground. PO Solomito did not see § 87(2)(b) collide with any objects or see officers strike § 87(2)(b) with their batons during the pursuit. PO Solomito stated that there appeared to be a struggle between the officers and § 87(2)(b) on the ground, but he passed them to create perimeter security because there were sufficient officers controlling § 87(2)(b). PO Solomito did not recall seeing an officer strike § 87(2)(b) with their baton. PO Solomito stated that he did not recall what § 87(2)(b) was doing on the ground. PO Solomito did not recall seeing an officer punch or kick § 87(2)(b). PO Solomito denied making any physical contact with § 87(2)(b) while he was on the ground. After officers handcuffed § 87(2)(b), PO Solomito escorted him to the police vehicle. PO Solomito stated that he did not see officers use force against § 87(2)(b) and denied using force against him.

In his CCRB testimony, Sgt. McSherry stated that he was approximately 10 feet away when the officers caught up to § 87(2)(b). Sgt. McSherry did not know how the officers and § 87(2)(b) ended up on the ground. Sgt. McSherry did not see § 87(2)(b) bump into an object or an officer hit § 87(2)(b) with a baton. Sgt. McSherry ran past the officers attempting to handcuff § 87(2)(b). When Sgt. McSherry returned, § 87(2)(b) was already handcuffed and standing. Sgt. McSherry did not see officers use force against § 87(2)(b).

During his CCRB interview, PO Angelo was shown a clip from PO Peluso's BWC footage (Board Review 03). The video was played from 1:25 and paused at 1:30 (Board Review 24). PO Angelo identified himself as the officer crouching. PO Angelo stated that he was in the middle of throwing handstrikes to § 87(2)(b). The video played from 1:28 and paused at 1:36. PO Angelo denied striking § 87(2)(b) with his baton at this point and was only using handstrikes. PO Angelo did not see § 87(2)(b) clapping his hands at the back of his head because everything was happening so fast. PO Angelo then reviewed the BWC from 1:33 to 2:02 and acknowledged that it was an accurate depiction of what occurred.

At 1:25 of PO Peluso's BWC, § 87(2)(b) runs under the scaffolding (Board Review 24). At 1:28, it appears that the front left side of § 87(2)(b) body hits a pole. § 87(2)(b) is then turned towards the officers. It is unclear what happens after due to the camera's position. At 1:30, § 87(2)(b) is trying to get away from the officers. It is unclear what happens next because he is out of the frame. At 1:33, § 87(2)(b) is on the ground and his forearms are raised up covering his head. Between 1:33 – 1:34, it appears that PO Angelo struck § 87(2)(b) twice in the arm with his baton. § 87(2)(b) arms are held in this position until approximately 1:41 as PO Peluso and other officers pull his left arm down.

None of the other officers' BWC clearly captured any additional force. Cellphone footage provided by § 87(2)(b) captures officers surrounding § 87(2)(b) while he was on the ground, but due to the distance and low quality of the video it is unclear what is happening (Board Review 38).

The TRI report noted that § 87(2)(b) collided with a metal scaffolding, causing a small laceration to his head (Board Review 17). Officers then struck § 87(2)(b) with their batons to overcome active resistance. The TRI listed PO Rasool, PO Angelo, PO Salzman, and PO Peluso as some of the officers who used force, and it noted that officers used a forcible takedown, hand strike, impact weapon, wrestling/grappling, and foot strike. However, the TRI did not attribute the force to any specific officers.

§ 87(2)(b) was arrested and charged with assault (injury with weapon), resisting arrest, inciting to riot, menacing with a weapon, obstruction of governmental administration, aggravated harassment, criminal possession of a weapon, and unlawfully assembly (Board Review 16). According to his arrest report, § 87(2)(b) was 31 years old, 5'10", and weighed 190 pounds at the time of his arrest.

§ 87(2)(a) – PHL 18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

NYPD Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of the service or otherwise protect life, or when it is reasonable to place person in custody or prevent escape from custody. In determining whether the use of force is reasonable, member of the service should consider the nature and severity of the

crime/circumstances, actions taken by the subject, duration of action, immediacy of perceived threat or harm to subject, members of service, and/or bystanders, whether the suspect is actively resisting custody, whether the subject is attempting to evade arrest by flight, size, age, and condition of the subject in comparison to the MOS (Board Review 32).

It is undisputed that § 87(2)(b) ran away from officers after throwing an object at PO Solomito.

From PO Peluso's BWC footage, § 87(2)(b) ran into a pole and then continued to evade arrest.

§ 87(2)(g)

Therefore, it is recommended that **Allegations J-L** be closed as **Exonerated**.

It is undisputed that PO Angelo struck § 87(2)(b) with his baton again while they were on the ground and PO Angelo, PO Salzman, and PO Peluso punched and kicked him. Although § 87(2)(b) stated that he was trying to put his hands behind his back, BWC footage showed that § 87(2)(b) held his hands behind his head and did not give his hands to the officers. § 87(2)(g)

Moreover, it is undisputed that § 87(2)(b) sustained a spinal fracture during his arrest. § 87(2)(g)

Therefore, it is recommended that **Allegations M, N, S, and T** be **Unsubstantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation Q and R** be closed as **Unsubstantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegations U and V** be closed as **Officers Unidentified**.

Allegation (O) Force: Police Officer Nowaiz Rasool struck § 87(2)(b) with a nightstick/asp/baton.

Allegation (P) Force: Police Officer Nowaiz Rasool used physical force against § 87(2)(b).

Between 1:41 – 1:46 of PO Amello's BWC, PO Rasool strikes § 87(2)(b) with his baton several times (Board Review 23). None of the officers' BWC captured PO Rasool using any additional force.

In his CCRB statement, § 87(2)(b) stated that PO Rasool also punched him during the arrest (Board Review 02).

§ 87(2)(g)

it is recommended that **Allegations O and P** be closed as **miscellaneous-subject retired**.

Allegation (W) Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Vincent Peluso spoke discourteously to § 87(2)(b).

Although it was not alleged by § 87(2)(b) or § 87(2)(b) PO Peluso reviewed PO Amello's BWC in his CCRB interview, and acknowledged saying some of the profanities captured (Board Review 05 and 23). PO Peluso stated that he either said something to the effect of "mother fucker" or "fucker" between 1:34 - 1:36. PO Peluso stated that it was a stressful situation because he and the officers were trying to handcuff § 87(2)(b) but he was not complying. Additionally, PO Peluso stated that he said, "Put your fucking shoe on" between 3:08 and 3:14, but PO Peluso stated that he did not recall saying this.

During his CCRB interview, PO Peluso was shown a clip from his BWC between 1:28 - 1:37 (Board Review 05 and 24). PO Peluso stated that he said, "Give me your fucking hands you motherfucker" because § 87(2)(b) was not complying with being handcuffed and he was trying to get § 87(2)(b) hands back as quickly as possible. PO Peluso stated that he called § 87(2)(b) a "fucking smartass" between 1:37 - 1:55, but he did not recall why he said this.

The mission and values of the NYPD states that officers are to "maintain a higher standard of integrity that is generally expected of others" and "value human life, respect the dignity of each individual, and render our services with courtesy and civility," NYPD Patrol Guide Procedure 200-02 (Board Review 31).

Officers' use of profanities during stressful street encounters do not constitute misconduct but may not do so when it serves "no legitimate purpose but to belittle" a civilian, DAO DCT Case Number 2015-15012 (Board Review 30).

It is undisputed that § 87(2)(b) evaded arrest by running away from the officers after throwing an object at the officers. It is also undisputed that the officers were at the location to disperse a large crowd that was refusing to leave. § 87(2)(g)

Therefore, it is recommended that **Allegation W** be closed as **Exonerated**.

Allegation (X) Offensive Language: At § 87(2)(b) in Brooklyn, an officer made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation (Y) Discourtesy: At § 87(2)(b) in Brooklyn, an officer spoke discourteously to § 87(2)(b)

Allegation (Z) Abuse of Authority: At § 87(2)(b) in Brooklyn, an officer threatened § 87(2)(b) with the use of force.

Although it was not alleged by § 87(2)(b) or § 87(2)(b) at 1:43 of PO Peluso's BWC, a male's voice is heard saying, "You little fucking bitch" (Board Review 24). Additionally, at 1:54 of PO Amello's BWC, a male's voice is heard saying, "If you don't give me your hands Imma sock you in the fucking face man. Give me your fucking hands" (Board Review 23). None of the other officers' BWC captured the subject officer.

None of the officers interviewed acknowledged calling § 87(2)(b) a "little fucking bitch" or saying "Imma sock you in the fucking face man. Give me your fucking hands" (Board Review 03-11). The audio was played during their interviews, and none of the officers were able identify the officer who made the statements.

§ 87(2)(g)

Therefore, it is recommended that **Allegations X-Z** be closed as **Officer Unidentified**.

Allegation (AA) Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Jeanette Rodriguez spoke discourteously to § 87(2)(b)

Although it was not alleged by § 87(2)(b) or § 87(2)(b) PO Peluso's BWC, captured PO Rodriguez using profanities several times while speaking to § 87(2)(b) (Board Review 24). At 02:31, PO Rodriguez tells § 87(2)(b) "Stop looking at me. Worry about walking forward. Get the fuck over. Nasty ass." At 02:43, PO Rodriguez says something inaudible to § 87(2)(b) but she says "fucking." At 05:24, PO Rodriguez tells § 87(2)(b) "You ain't shit." At 05:59, PO Rodriguez tells § 87(2)(b) something inaudible, but she says, "fucking equality." At 07:33, PO Rodriguez tells § 87(2)(b) "What you gonna do? You ain't shit that's why. You ain't shit." At 07:42, PO Rodriguez tells § 87(2)(b) "It dishonors everything. Everything you stand for. Everything you fucking stand for. You dishonor it. You fucking." At 07:25, PO Rodriguez tells § 87(2)(b) "...shit with your life when you're drunk." At 08:15, PO Rodriguez tells § 87(2)(b) "...shit that's why no one takes you seriously." At 08:22, PO Rodriguez tells § 87(2)(b) something inaudible but in the midst of the statement she says "shit." At 09:34, PO Rodriguez tells § 87(2)(b) "Shut the fuck up."

In her CCRB interview, PO Rodriguez acknowledged saying some of the profanities captured in the BWC, but she stated that she did not hear some of the profanities when she reviewed the BWC. PO Rodriguez stated that it was an "intense atmosphere" because it was a long walk while they escorted § 87(2)(b) to the van and § 87(2)(b) kept getting very close to PO Rodriguez's face at different points. PO Rodriguez stated that § 87(2)(b) pulled his elbows back and in response she had to back up and push him away. PO Rodriguez stated that she used profanities because § 87(2)(b) was aggressive, and she was frustrated with § 87(2)(b) behavior.

The mission and values of the NYPD states that officers are to "maintain a higher standard of integrity that is generally expected of others" and "value human life, respect the dignity of each individual, and render our services with courtesy and civility," NYPD Patrol Guide Procedure 200-02 (Board Review 31).

Officers' use of profanities during stressful street encounters do not constitute misconduct, but may not do so when it serves "no legitimate purpose but to belittle" a civilian, DAO DCT Case Number 2015-15012 (Board Review 30).

§ 87(2)(g)

Therefore, it is recommended that **Allegation AA** be closed as **Substantiated**.

Allegation (AB) Discourtesy: At § 87(2)(b) in Brooklyn, an officer spoke discourteously to individuals.

Although it was not alleged by any civilians, a male's voice is heard saying, "Just go into the fucking precinct" between 02:43 and 02:51 of PO Keegan's BWC (Board Review 26). PO Keegan's BWC did not capture the officer who said this and none of the other officers' BWC captured this incident.

§ 87(2)(g)

it is recommended that **Allegation AB** be closed as **Officer Unidentified**.

Allegation (AC) Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Matthew Salzman spoke discourteously to an individual.

Allegation (AD) Offensive Language: At § 87(2)(b) in Brooklyn, Police Officer Matthew Salzman made remarks to an individual based upon the gender of the individual.

Although it was not alleged by any civilians, during his CCRB interview, PO Salzman reviewed 2:51 - 3:07 of PO Keegan's BWC and stated that he said, "Go the fuck home, what the fuck are you going to do, you fucking bitch" (Board Review 11 and 26) PO Salzman did not recall this conversation or why he made the statement but noted that it was a tense moment given the situation and that officers were trying to disperse everyone. Between 2:35 -3:08 of PO Salzman's BWC, two males wearing red asked the officers questions regarding why someone was going to the precinct.

The mission and values of the NYPD states that officers are to "maintain a higher standard of integrity that is generally expected of others" and "value human life, respect the dignity of each individual, and render our services with courtesy and civility," NYPD Patrol Guide Procedure 200-02 (Board Review 31).

Officers' use of profanities during stressful street encounters do not constitute misconduct, but may not do so when it serves "no legitimate purpose but to belittle" a civilian, DAO DCT Case Number 2015-15012 (Board Review 30).

At the time PO Salzman used profanities, the arrested individuals had already been removed from the scene and there was no longer a large crowd in the courtyard. Aside from asking the officers questions, the two males were not doing anything else. § 87(2)(g)

Therefore, it is recommended that **Allegation AC-AD** be closed as **Substantiated**.

Allegation (AE) Force: At the 75th Precinct stationhouse, Police Officer Nowaiz Rasool used physical force against § 87(2)(b)

In his CCRB statement, § 87(2)(b) stated that when they arrived at the 75th Precinct, he saw PO Rasool push § 87(2)(b) out of the van. § 87(2)(b) did not know what happened immediately prior to PO1 pushing § 87(2)(b) did not hear any conversation between § 87(2)(b) and PO Rasool.

Starting at 14:22 of PO Rasool's BWC, § 87(2)(b) refused to exit the police van (Board Review 27). At 14:43, PO Rasool pulls § 87(2)(b) by his right bicep. At 15:06, PO Rasool pulls § 87(2)(b) out of the vehicle and to the ground.

§ 87(2)(g)

it is recommended that **Allegation AE**

be closed as **miscellaneous-subject retired**.

Allegation (AF) Discourtesy: At the 75th Precinct stationhouse, Police Officer Brandon Gentz spoke discourteously to § 87(2)(b)

Although it was not alleged by § 87(2)(b) during PO Gentz's CCRB interview, PO Gentz reviewed PO Salazar's BWC and acknowledged using profanities while speaking to § 87(2)(b) (Board Review 04 and 28). At 14:30, PO Gentz tells § 87(2)(b) "When shit got hairy man, you gotta learn when to slide out the backdoor and be unseen." At 15:08, PO Gentz then tells § 87(2)(b) that he was most likely going to get a summons and it was not going to "fuck up" his future. At 15:27, PO Gentz tells § 87(2)(b) that he was, "Not a big fan of fucking people's futures up." At 17:03, as PO Gentz is explaining to § 87(2)(b) about how people could see who § 87(2)(b) was with and even though he has never been with them "doing any of the fucked up shit," he is "done." During his CCRB interview, PO Gentz stated that he used profanities because he was trying to "level" with § 87(2)(b) and he was trying to "show humanity to an individual that was in a low point in his life that was at the wrong place at the wrong time." PO Gentz stated that he wanted to talk to § 87(2)(b) in a way he would understand because officers are looked at negatively and it is good to be "humanizing."

The mission and values of the NYPD states that officers are to "maintain a higher standard of integrity that is generally expected of others" and "value human life, respect the dignity of each individual, and render our services with courtesy and civility," NYPD Patrol Guide Procedure 200-02 (Board Review 31).

Officers' use of profanities during stressful street encounters do not constitute misconduct, but may not do so when it serves "no legitimate purpose but to belittle" a civilian, DAO DCT Case Number 2015-15012 (Board Review 30).

It is undisputed that PO Gentz was not in a stressful environment when he was speaking to § 87(2)(b) in the 75th Precinct holding cell. § 87(2)(g)

Therefore, it is recommended that **Allegation AF** be closed as **Substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- § 87(2)(b) [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Solomito has been a member of service for four years and has been a subject in three cases and 12 allegations, of which one was substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
 - Case number 201908017 involved a substantiated allegation of a question against PO Solomito. The NYPD imposed no penalty.
- PO Salzman has been a member of service for six years and has been a subject in two cases and two allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
- PO Rodriguez has been a member of service for six years and has been a subject in four cases and 17 allegations. § 87(2)(g) [REDACTED]
[REDACTED]
- PO Angelo has been a member of service for six years and has been a subject in four cases and nine allegations, of which two were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
 - Case number 201902877 involved substantiated allegations of failure to provide RTKA card and a stop against PO Angelo. To date, the NYPD has not imposed any penalties.
- PO Mancilla has been a member of service for six years and has been a subject in four cases and 10 allegations, of which one was substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
 - Case number 201908017 involved a substantiated allegation of a discourtesy against PO Mancilla. The NYPD imposed no penalty.
- PO Peluso has been a member of service for three years and has been a subject in five cases and 14 allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
- PO Plumitallo has been a member of service for six years and has been a subject in eight cases and 32 allegations, of which two were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]

- Case number 201906894 involved a substantiated allegation of a stop against PO Plumitallo. The NYPD imposed Command Discipline B.
- Case number 201909062 involved a substantiated allegation of failure to provide RTKA card against PO Plumitallo. The NYPD imposed no penalty.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of July 2, 2021, the New York City office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 37).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

Squad: CCS

Investigator:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>03/02/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date